

CV-24-007633 HEITZER, MURRAY vs LIU, ANNA YAN - Plaintiff's Motion for Sanctions - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds that Defendant's service of a deposition subpoena on PostalAnnex did not provide Plaintiff and his then Counsel Ms. Shiloh notice of said deposition, and also failed to serve P's Counsel as the consumer, with the required (1) notice of the deposition (2) notice of privacy rights and (3) a copy of the deposition subpoena. (Civ. Proc. Code § 2025.240 (a) and (b)). Defendant's said failure amounts to abuse of the discovery process giving the Court discretion to impose discovery sanctions. (Civ. Proc. Code §§ 2023.010 and 2023.030). Monetary sanctions of \$700 are hereby imposed against Defendant and her Counsel jointly for Plaintiff's reasonable attorney's fees and costs incurred in bringing this motion

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